

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 08/25/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested, the requesting party shall specify the issues to be argued.

Zoom hearing information

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Law & Motion

1. 9:00 AM CASE NUMBER: L24-02692
CASE NAME: SYNCHRONY BANK VS. CHIMEON ROBINSON
MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT
AND RELEASE AGREEMENT
FILED BY: SYNCHRONY BANK
TENTATIVE RULING:

Plaintiff filed a Motion, filed on 3/11/26, to Enter Judgment Under Settlement Agreement, along with accompanying documents. Plaintiff provided mail notice to Defendant at the address where he was personally served with with process.

The Motion was originally scheduled for 6/23/26, but apparently was continued by the court to 8/25/26.

This court does not find that the parties were given proper notice for the 8/25/26, date.

Disposition

This Motion will be continued to 10/6/26, 9am.

The Court will provide notice to both parties.

2. 9:00 AM CASE NUMBER: L24-04232
CASE NAME: CITIBANK N.A. VS. GINO MAYNETTO
TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT
FILED BY:

***TENTATIVE RULING**

NEEDS NEW DATE

Background

Plaintiff filed, on 5/20/26, an amended Motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant where he served – via substitute service - with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court, nor indicate in any other way that the mailing address listed in the attachment to the Complaint is incorrect. Thus, the court finds that Defendant was properly noticed of this Motion.

However, this Motion was originally scheduled for 6/23/26, yet the court continued it to 8/25/26. Though the court provided mail notice to the Plaintiff of this change, there is no evidence that Defendant was given notice.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,578.34, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$2,381.82.

Costs are \$583.61.

However, this court finds that Defendant was not given notice of this hearing.

Disposition

Plaintiff's Motion is continued.

Plaintiff to notify Defendant of new date of hearing.

3. 9:00 AM CASE NUMBER: L24-06739

CASE NAME: JOHN LANGERSTON VS. JOHN KANG

FOR ATTORNEY'S FEES AS SANCTIONS AND COSTS

FILED BY: KANG, JOHN

TENTATIVE RULING:

Defendant filed a Motion for attorney's fees, under Section 128.5 of the CCP.

Plaintiff Responded, and Defendant filed a Reply.

The moving papers have been timely filed and served.

Background

Defendant argues that this lawsuit is frivolous only because Plaintiff had already litigated and lost on the same claim, and should never have filed the Complaint. As a consequence, Defendant seeks attorney fees that he incurred in defending himself.

Defendant provided no other reason to justify the request for attorney's fees.

Specifically, this court granted judgment in favor of Defendant after a court trial, on 3/11/26, in which this court found that Plaintiff had already litigated the claim against Defendant – and lost - in a prior, small claims matter. This court found that Plaintiff's claim was barred by res judicata.

In the declaration of Defendant's counsel, counsel writes that he told Plaintiff of his hourly rate and attempted, many times, to persuade the Plaintiff to dismiss his case.

Plaintiff filed his Complaint on 8/19/24, and there is no evidence, during the life of this case, that Defendant filed this Motion 21 days after service of the Motion on Plaintiff.

Analysis

Section 128.5 of the CCP allows a court to order a party to pay the reasonable attorney's fees of another party if the offending party has engaged in actions that are frivolous. The filing of a complaint can qualify as such an action.

However, this statute also has a safe harbor provision, which gives the offending party an opportunity to correct the qualifying action. Thus, the party seeking sanctions must have served the offending party with a copy of the requesting motion 21 days *before* filing the motion with the court. Only if, after notice, the offending party has then not withdrawn the action at issue can the moving party proceed with the motion.

That did not happen here.

Defendant should have provided Plaintiff a copy of this Motion long ago.

Disposition

Defendant's Motion is denied.

Court will issue Order.

4. 9:00 AM CASE NUMBER: L24-08703

CASE NAME: SYNCHRONY BANK VS. LUIS MUNGUIA

**MOTION FOR ENTERING JUDGMENT PURSUANT TO DEFENDANT'S DEFAULT UNDER SETTLEMENT
AND RELEASE AGREEMENT**

FILED BY: SYNCHRONY BANK

***TENTATIVE RULING**

Plaintiff filed a Motion to enter judgment pursuant to stipulation. The Motion was originally scheduled for 6/23/26, but the court continued the matter to 8/25/26.

While the court sent notice to Plaintiff about the 8/25/26, the court did not provide notice of this change to Defendant because Defendant has not filed any pleadings with the court.

It does not appear Plaintiff provided notice to Defendant of the new date, either.

Disposition

This matter will be continued to 12/8/26, 9am.

Plaintiff to provide notice of new date to Defendant.

5. 9:00 AM CASE NUMBER: L24-09288

**CASE NAME: CORE EQUIPMENT LEASING, LLC VS. MOUNTAIN MOVERS EXCAVATION, INC.,
TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT**

FILED BY: MOUNTAIN MOVERS EXCAVATION, INC.,

***TENTATIVE RULING**

In this matter, Defendant filed, on 3/12/26, a Motion to set aside default and default judgment.

The Motion is unopposed, but there is no indication that Defendant ever provided notice of the Motion to Plaintiff.

Disposition

This Motion will be continued to 12/8/26, 9am.

Defendant to provide a copy of the Motion to Plaintiff, and to provide notice of the next hearing.

**6. 9:00 AM CASE NUMBER: L25-03786
CASE NAME: WELLS FARGO BANK, N.A. VS. KEVIN ROA**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Wells Fargo v. Bryan Manuel

Plaintiff filed a Motion for Summary Judgment (the “MSJ”), along with a Declaration of William Haas, a Separate Statement of Undisputed Material Facts and Plaintiff’s Exhibits A through C. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on the address provided in Defendant’s Answer.

Background

The Complaint alleges a breach of contract cause of action stemming from a credit card agreement. Plaintiff alleges Defendant stopped making payments on debt he owed, an action that violated the terms of the cardholder agreement.

The final balance of Defendant’s account is alleged to be \$10,277.97.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) (“CJER Civ. Proc. before Trial”), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity

to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the declaration of William Haas, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Haas declared that he was familiar with the record keeping practice of Wells Fargo Bank, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence. In addition, statements about the custom and practice of Wells Fargo, such as their practice of mailing Customer Agreements to consumers, as well as the fact that accounts cannot be used unless cards are activated by the cardholder, are admitted.

Next, the court evaluates whether Plaintiff has made a *prima facie* showing of a Breach of Contract.

The exhibits show a Cardholder Agreement, where the terms, such as making payments for costs incurred, receiving account statements, and the acceptance of the agreement terms by use of the card and account. Ms. Haas also declared that it was the custom and policy of Plaintiff to issue such an agreement whenever a party applies for a credit card.

These exhibits, coupled with the declaration of Ms. Haas, establish a *prima facie* showing for Breach of Contract, and that the balance owed to the Plaintiff is \$10,277.97. There is evidence of an implied contract in that an agreement was mailed to Defendant, and he then, with knowledge of the terms, activated and used the card for purchases. The billing statements reflect that Defendant did not repay

all of the money that was given to him for the purchases.

The burden would normally shift to the Defendant at this point, but the Motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.
2. Plaintiff to prepare the order after hearing.

7. 9:00 AM CASE NUMBER: L25-05652
CASE NAME: HORMOZ REZAIE VS. LAURA RUETTIGERS
TO COMPEL PLAINTIFF TO RESPOND TO FORM INTERROGATORIES, SET ONE
FILED BY: RUETTIGERS, LAURA JANE
TENTATIVE RULING:

Defendant filed a Motion, on 3/13/26, to compel discovery responses from Plaintiff, along with a request for sanctions, under Sections 2030.290, 2030.210 and 2030.220 of the CCP, and their corresponding statutes with respect to sanctions. Defendant has also filed a Declaration and a Memorandum.

Defendant served the documents on Plaintiff electronically.

Plaintiff filed a Response, on 8/12/26, along with a Declaration ("Plaintiff's Declaration"), on 8/13/26.

Defendant filed a Reply, served electronically.

Background

Defendant claims she served a set of form interrogatories on Plaintiff, ("Set One"), on 9/22/25, but that, to each request, Plaintiff objected and requested more time to respond because of an ailing spouse. The only basis for the objection was the need for a continuance because of this circumstance.

Plaintiff has also, apparently, provided no timeline by which he could provide the discovery responses, despite multiple attempts by the Defendant to meet and confer.

Defendant also alleges that Plaintiff has, simultaneously, been participating in a small claims matter involving the same parties (MSC24-0498A) and in which Plaintiff has submitted hundreds of pages of documents to support his position.

Defendant requests monetary sanctions, arguing that Plaintiff's failure to respond is a misuse of the discovery process.

Defendant's Declaration reflects that Defendant electronically served on Plaintiff's counsel Set One of

form interrogatories on 8/22/25. Plaintiff responded to each interrogatory with the same response, which was that spouse requires 24 hour care from Plaintiff, that Plaintiff is unable to prepare responses, and that he would like more time to respond. Plaintiff does not provide an alternative date by which to respond. "The responses are signed by Plaintiff's counsel and dated 9/22/25. (See Exhibits A and B.)

In his response to the discovery requests, Plaintiff also included a declaration filed on 8/29/25, in the small claims matter, to which he attached a letter from a physician, dated 8/25/25, indicating that Plaintiff's spouse suffered from ALS, was permanently disabled and required 24-hour care.

Exhibit C of this Declaration reflects an email, on 10/2/25, from Defendant's attorney with an offer to extend the deadline to 10/22/25, and that also notes the Plaintiff's failure to offer an alternative deadline in their initial set of discovery responses.

Exhibit D shows another email from Defendant's attorney to Plaintiff's counsel, this time on 10/9/25, following up to the 10/2, email, and noting that Plaintiff failed to respond.

On 11/23/25, Defendant's counsel alludes to a discussion on 11/21, in small claims court, in which Defendant agreed to a further extension for responses to 11/21/25. There were no responses from Plaintiff. Defendant then indicates they will file a motion to compel.

There are a significant number of emails from Defendant's counsel in this vein.

Plaintiff's counsel, Mr. Morgan, finally responds to the emails on 11/24/25, when he refers to the circumstances of his client's ailing spouse, yet provides no indication of when responses can be provided.

Counsel for Defendant cites an hourly rate of 676.65, declares that he has three years of litigation experience, and anticipates a total of 6 hours spent on presenting this Motion.

Plaintiff, in his Response, claims that: Defendant's form interrogatories exceeded the cap for such discovery requests in limited civil cases; Defendant moves for relief under the wrong statutory authority, since he did provide responses (i.e., Defendant should have sought a motion to compel further responses); that, under the appropriate statute governing motions to compel further discovery, Defendant's request comes beyond 45 days, and is thus untimely; and that Plaintiff has, with their Declaration, provided further and satisfactory discovery responses.

These supplemental responses were provided to Defendant electronically on 8/12/26, and were verified by Plaintiff. What's more, while there appear to be detailed responses to some of the interrogatories, those responses stop at Interrogatory 9.2; from that point on, Plaintiff objects, stating that Defendant has exceeded the limit for requests.

Plaintiff also makes reference to the small claims matter, but the argument appears nonsensical.

Finally, in Plaintiff's Declaration, counsel for Plaintiff refers to the significant number of filings and court appearances for the small claims matter.

The court takes judicial notice of the small claims matter, MSC24-0498A, in which it does not appear that Plaintiff has filed anything since 8/29/25, when Plaintiff requested a continuance of the small claims matter because of his ailing spouse.

Plaintiff filed the Complaint in this matter on 5/20/25.

Analysis

Section 2030.290 provides a remedy to a party when the opposition fails to provide timely responses to interrogatories. The responding party waives any objection to the requests. The moving party can request that the court compel a response from the opposition. And the court shall impose monetary sanctions on any party unsuccessfully opposing or making the motion unless it finds that the offending party acted with substantial justification, or that the imposition of sanctions would otherwise be unjust. (*Id.*)

The CCP statutes further require that any responses must be in writing and under oath, and that any objection must set forth the specific ground for the objection “clearly in the response.” (See Sections 2030.210 and 2030.240 of the CCP.)

In the instant matter, Plaintiff’s argument that Defendant invokes the wrong statute assumes that Plaintiff, in fact, provided a timely response to the interrogatories. But that did not happen. A response must be made under oath. The only way to circumvent this requirement is in the case that a response consists entirely of objections, under Section 2030.250 of the CCP.

Plaintiff did neither. The initial responses were not made under oath, and they merely requested further time. But a request for a continuance is no ground for an objection.

Thus, this court finds that Plaintiff never provided timely responses to Defendant’s interrogatories from 9/22/25.

As a consequence, Plaintiff has waived any objections to the requests, such as invoking the limit on requests for limited civil matters.

Sanctions

This court first doesn’t find it to be the case that while Plaintiff has claimed an inability to participate in his own litigation in the instant matter, he has simultaneously done the opposite in the small claims matter. It doesn’t appear that Plaintiff has filed anything in the small claims matter since he first raised the issue of his spouse’s ailing health.

But this court still finds that Plaintiff has misused the discovery process by failing to respond to legitimate discovery requests. It has taken Plaintiff nearly a year to respond to the form interrogatories of Defendant. There were a significant number of attempts by Defendant to discuss the discovery issue and Plaintiff hardly responded, if at all, and seemed to believe that his responsibility to care for his wife meant that he no longer had to follow litigation rules for a lawsuit he initiated. Defendant could do nothing else but file a motion to compel.

This is not fair to the Defendant. It is not fair to begin a lawsuit, prevent the Defendant from properly defending herself by virtue of not participating in the discovery process, then wave off any attempts by Defendant to accommodate the Plaintiff.

If Plaintiff could not participate in the prosecution of the case, he had options. He could have, with some efforts to communicate with Defendant, sought an agreement to dismiss without prejudice but with a tolling of any statute of limitations issues. He made no such attempt. He could also simply have dismissed without prejudice. That, obviously, did not happen either.

This court finds that the 6 hours that Defendant's counsel spent on this issue is reasonable. However, the hourly rate of over \$650, for a limited civil case in the Bay Area, is not. In this court's experience, an hourly rate of \$450 is appropriate for the level of complexity of this matter.

Further, this court does not find that Plaintiff's supplemental responses on 8/12/26 substantially justify the conduct. They are nearly a year late and Plaintiff paid little attention to Defendant's overtures to work out an alternative deadline. What's more, Plaintiff has elected to only respond to the first 35 requests, believing he can invoke the statutory cap at this late hour. He cannot. It's far too late for that; objections have been waived.

However, the court is sympathetic to the fact that Plaintiff has been burdened by the care he must provide for his spouse, and finds the full sanction amount (\$450/hr for 6 hours, totaling \$2,700) to be unjust. The court will, then, sanction the Plaintiff for half that amount, or, **\$1,350**.

Disposition

Defendant's Motion is granted.

Plaintiff is ordered to answer the remaining interrogatories within 30 days of today, 8/25/26.

Plaintiff to pay Defendant sanctions in the amount of \$1,350, by 12/1/26, 5pm.

Defendant to file Order and serve Plaintiff.

8. 9:00 AM CASE NUMBER: L25-09401

CASE NAME: CAPITAL ONE N.A. VS. AMY NILSON

MOTION TO DISMISS

FILED BY:

TENTATIVE RULING:

This was vacated.

9. 9:00 AM CASE NUMBER: L25-12479

CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV

**FOR ORDER AUTHORIZING ALTERNATIVE SERVICE OF SUMMONS ON DEFENDANT ANIL YADAV
PURSUANT TO CCP 413.30**

FILED BY: VAN DE POEL & LEVY LLP

TENTATIVE RULING:

Plaintiff has requested leave to serve process on Defendant Anil Yadav (“Anil”) by serving counsel for a company purportedly operated by Defendant Anil, as well as by mailing process documents to the purported residence of Defendant Anil, which has an address in Sunol.

Background

Plaintiff, in their Declaration, notes that they have confirmed the Sunol address as the residence for Defendant Anil “through public records.” There is no further explanation of what this means. Plaintiff describes several unsuccessful attempts of service at this address, but none of these attempts suggest any confirmation that Defendant Anil indeed resides at the address.

Plaintiff also provides exhibits showing a link between Defendant Anil and the company he apparently runs, with the address of the business, as well as email exchanges with the attorneys of this company, who decline to accept service for Defendant Anil.

Analysis

Section 413.30 of the CCP permits a court to allow an alternative method for service of process, but it requires the moving party to show that they’ve made diligent efforts to serve the other party.

That has not happened here.

It is unclear how Plaintiff came up with the Sunol address. Which public records were used to confirm that this address is, in fact, associated with Defendant Anil?

Disposition

Plaintiff’s Application is denied without prejudice.

Plaintiff to file Order.

**10. 9:00 AM CASE NUMBER: L25-14082
CASE NAME: WELLS FARGO BANK, N.A. VS. BRE BRIGGS
FOR JUDGMENT ON THE PLEADINGS
FILED BY: WELLS FARGO BANK, N.A.**

TENTATIVE RULING:

Plaintiff filed a Motion for Judgment on the Pleadings, as well as an accompanying Declaration. The moving papers were timely served by mail on the address for Defendant provided in the Answer.

The Declaration reflects Plaintiff's attempt to meet and confer with Defendant prior to filing of this Motion, as required by CCP 439.

The Motion is unopposed.

Background

Plaintiff's Motion argues that Defendant's Answer both admits the allegations of the Complaint and offers no defense.

The Complaint alleges a breach of contract, in that Defendant failed to repay a credit loan to Plaintiff in the amount of \$19,223.80. Specifically, the Complaint alleges that Defendant failed to make payments on the contract, that Defendant refuses to pay Plaintiff the amount owed under the contract. Generally, the Plaintiff alleges that they suffered damages.

The agreement, attached to the Complaint, appears to reflect a credit card loan. The agreement reflects terms of acceptance, payment, and payment frequency, as well as consequences for nonpayment. The attachment also includes a document suggesting that the agreement terms were made to Defendant upon her application for the credit card.

The Complaint is a collections matter, under CRC 3.740, and is not verified.

Plaintiff also provided an accounting of costs amounting to \$430.

Defendant, in the Answer, admits that all of the statements in the Complaint are true. Though box 3b) is checked, which allows for an exception to the admission, no exception is provided.

The Defendant writes in other parts of the Answer that they are experiencing financial hardship.

Analysis

A motion for judgment on the pleadings may be brought by a plaintiff where the complaint states facts sufficient to constitute a cause or causes of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. Code Civ. Proc. § 438(c); see Weil & Brown, *et al.*, *Cal. Prac. Guide: Civ. Pro. Before Trial* (The Rutter Group 2024) ("Rutter Civ. Pro.") § 7:290. The grounds for a motion for judgment on the pleadings must appear on the face of the pleadings or be based on facts that a court may judicially notice. Civ. Proc. § 438(d); Rutter Civ. Pro., § 7:291. Matters that may be judicially noticed include a party's admissions or concessions which cannot reasonably be controverted. *Pang v. Beverly Hospital, Inc.* (2000) 79 Cal.App.4th 986, 989-990.

If a material allegation of the complaint is not controverted by the answer, then it will be considered as true. *CCP 431.20(a)*.

When a collections case is not verified, "[A] general denial [of the allegations in a complaint] is sufficient but only puts in issue the material allegations of the complaint." *CP 431.30(d)*. Moreover, a defendant may place her denial of the allegations in a complaint on the ground that she "has no

information or belief upon the subject sufficient to enable him or her to answer an allegation of the complaint.” CCP 431.30(e).

A judge must deny a plaintiff’s motion for judgment on the pleadings if the defendant’s answer raises any material issue or sets up any affirmative matter constituting a defense. *Allstate Ins. Co. V KimW.* (1984) 160 CA3d 326, 330–331.

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

A court can grant a motion for judgment on the pleadings with leave to amend. CCP 438(h)(1). The court must use the standards in deciding whether to granting to leave to amend as it would for a demurrer. *People v. \$20,000 U.S. Currency* (1991) 235 Cal.App.3d 682, 692.

With respect to demurrers, courts are generally quite liberal in allowing amendment. When a demurrer is sustained, the court must determine if “there is a reasonable possibility that the defect can be cured by amendment.” *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318. “Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given.” *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.

In the instant matter, Defendant admits all of the elements of a breach of contract, the sole cause of action.

The court does not find that there exists a reasonable possibility that the deficient Answer can be cured through amendment.

Disposition

Plaintiff’s Motion is Granted in the amount of \$19,653.80.

Plaintiff to file Order and to provide written notice of the Order to Defendant.

**11. 9:00 AM CASE NUMBER: L26-00135
CASE NAME: WELLS FARGO BANK, N.A. VS. CRISTINA SMITH**

FILED BY: WELLS FARGO BANK, N.A.

TENTATIVE RULING:

Plaintiff has submitted a Motion for Summary Judgment, along with accompanying documents.

Defense filed a Response.

Background

The dispute stems from a credit card agreement, where Plaintiff alleges Defendant applied for a credit card, used the card and incurred debt, and failed to repay the debt. Plaintiff submitted the purported agreement which reflects that the cardmember agrees to the terms of the agreement by using the card.

Defendant, in her Response, invokes her right to settle this claim by virtue of arbitration. She points to a provision of the cardmember agreement, included in Plaintiff's declaration of their qualified witness (page 17 of the purported agreement), that any disputes shall be resolved by arbitration upon demand by either party. It also reflects that a party can trigger this process at any time "notwithstanding that a lawsuit or other proceeding has been previously commenced." (P.18 of purported agreement.)

Plaintiff, in their Reply, doesn't respond to this request.

Analysis

Code of Civil Procedure section 1281 provides that an arbitration agreement must be in writing to be valid and enforceable. Code Civ. Proc. § 1281; see CJER Civ. Proc. before Trial, § 3.37. Absent certain exceptions, arbitration must be compelled where it is shown that a written agreement to arbitrate exists, there is a controversy between the parties that is subject to that agreement, and the other party has refused to arbitrate. Code Civ. Proc. § 1281.2; see *Ashburn v. AIG Financial Advisors, Inc.* (2015) 234 Cal.App.4th 79, 96.

It is the moving party's burden to prove the existence of such an agreement. *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951.

In the instant matter, this court finds that there exists a written arbitration agreement between the parties, and the dispute at issue is subject to that agreement. Moreover, although Plaintiff has not explicitly refused to arbitrate, Defendant did request arbitration in their Response, and Plaintiff did not assent.

Thus, this court will compel the parties to arbitrate.

Disposition

Plaintiff's Motion is denied.

Defendant to begin arbitration process within 30 days of this Order, 8/25/26.

Defendant to file Order.

12. 9:00 AM CASE NUMBER: L26-00428
CASE NAME: FORD MOTOR CREDIT COMPANY LLC VS. RICHARD CHO
TO CHANGE VENUE
FILED BY: CHO, RICHARD
TENTATIVE RULING:

Defendant has filed a Motion to change venue. The Motion was originally scheduled for a hearing on 6/23/26, but the court continued it to 8/25/26. Defendant notified Plaintiff of the Motion and the 6/23/26, hearing by mail service. The court then notified both parties of the 8/25/26, hearing.

The Motion is unopposed.

Background

Defendant seeks to move the venue of this lawsuit to Orange County, under Sections 395 and 397 of the CCP.

The Complaint alleges a breach of contract stemming from an auto lease agreement. The purported lease is attached to the Complaint, and indicates that the lessor, a Ford car dealership, has a business address in Concord, CA. The lessor is identified as Future Ford Of Concord, LLC, and the lease is signed by the sales manager.

Defendant argues that Contra Costa County is not the right venue because he resided in Alameda County at the inception of the agreement and now lives in Orange County.

He claims that it will be too difficult to defend his case from several hundre miles away.

Analysis

Section 395(b) of the CCP states that, where an action involves the provision of goods, loans or credit, the proper county for the action is the one in which the parties signed the agreement.

Section 397 of the CCP indicates that a court can change the venue of a trial when the complaint is not in the proper court, or, when the convenience of the witnesses and the ends of justice would be promoted by the change.

In the instant matter, the lease was apparently signed in Contra Costa County, so this county is the proper one. Thus, whether the court honors Defendant's request hinges on convenience and the ends of justice.

However, it is not clear to the court that were would be much in the way of inconvenience to the Defendant if the case were tried in this county. All appearances, except for trial, can be made by zoom without prior approval. And, even for trial, the Defendant can also request to appear by zoom and offer as a reason the cost and inconvenience of attending trial in this county in person.

Disposition

Defendant's Motion is denied.

Plaintiff to file Order and serve on Defendant.

13. 9:00 AM CASE NUMBER: L26-01493
CASE NAME: VICTORIA WILLIAMS VS. INDIO MARQUEZ
MOTION TO VCATE ENTRY OF DEFAULT

FILED BY:

TENTATIVE RULING:

Defendant filed a Motion to set aside entry of default, under Section 473(b) of the CCP. Plaintiff filed a Response and a Declaration.

Default was entered on 5/15/26.

Background

Defendant claims excusable neglect, under Section 473(b) of the CCP as the reason she failed to file a timely answer to the Complaint, which was filed on 2/13/26. Specifically, she contends that she had an emergency operation on 4/2/26, and that she lost her job, permanently, on 7/31/26.

In her declaration, she writes that she was “heavily incapacitated and under intense post-operative care” when she was served with process on 4/6/26. As proof of this, Defendant included an exhibit which appear to be from a surgeon’s clinic and reflects that she should be out of work for a number of weeks beginning 4/6/26.

Defendant also provided another exhibit which reflects that she attempted to serve an Answer on Plaintiff, by mail, on 5/19/26.

Plaintiff argues that Defendant had plenty of time to file an Answer, whether or not she underwent a medical procedure.

This court also notes that Defendant’s Motion was filed approximately only one month after entry of default, and approximately only 4 months from the filing of the Complaint.

Analysis

Section 473(b) of the CCP permits a court to set aside entry of default when the defaulting party did so because of excusable neglect.

Courts must construe the statute liberally in order “to prevent injustice and to enable litigants to have their case heard on the merits. *Frank E. Beckett Co. v. Bobbit* (1960) 180 Cal. App. 2d Supp. 921, 924. “Even in a case where the showing under section 473 is not strong, or where there is any doubt as to setting aside of a default, such doubt should be resolved in favor of the application.” *Van Dyke v. MacMillan* (1958)162 Cal. App.2d 594, 598.

In this matter, this court is satisfied, by a preponderance of the evidence, that Defendant underwent a serious medical procedure, and that this had an effect on her ability to properly file an Answer.

Disposition

Defendant's Motion is granted.

Defendant shall file her Answer within 10 calendar days of today, 8/28/26, and serve the Plaintiff.

Defendant shall file and serve the Order.

14. 9:00 AM CASE NUMBER: L26-02264
CASE NAME: 1ST UNITED CREDIT UNION VS. VERONICA RAMOS, AN INDIVIDUAL
MOTION FOR JUDGMENT ON THE PLEADINGS FILED BY PLN ON 5/29/26
FILED BY: 1ST UNITED CREDIT UNION

TENTATIVE RULING:

This was vacated.

15. 9:00 AM CASE NUMBER: L26-04339
CASE NAME: ROBERT JOHANSON VS. PAMELA TORRES
PETITION FOR JUDICIAL DECLARATION OF ABANDONMENT OF MOBILE HOME
FILED BY: JOHANSON, ROBERT H

***TENTATIVE RULING**

Plaintiff has filed a Petition for Declaration of Abandonment of a Mobile Home, but there is no proof that they served the Petition on the Defendant.

Disposition

This Petition will be continued 10/15/26, 10am.

Plaintiff must provide notice of the hearing date to Defendant, and must serve a copy of the Petition and Summons.